

CV-25-004154 - GARRETTSTEINMAN, DANIEL PAUL vs SIERRA CLUB - a) Plaintiff's Motion to Compel Form Interrogatories – GRANTED IN PART AND DENIED IN PART. b) Plaintiff's Motion to Compel Request for Production – GRANTED IN PART AND DENIED IN PART. c) Plaintiff's Motion to Compel Special Interrogatories – GRANTED IN PART AND DENIED IN PART.

OVERVIEW: Under these somewhat unusual circumstances, the information provided as to work-product objections is sufficient. No work product objections are available between Mr. Garrett-Steinman and his former clients (Evidence Code section 958). Attorney-client privilege is limited.

The Court is sympathetic to the desire not to provide contact information to Plaintiff, but does not believe it appropriate to deny that witness information. Plaintiff is cautioned that whatever the cause of disruptive behavior toward witnesses, the likely sanction for the sorts of communications that have occurred in the past is to terminate the case in Defendants' favor. Plaintiff is ordered to send no more than one email and make no more than one phone call within any three-day period without prior approval of the Court.

The Court declines to issue sanctions under these circumstances.

The issue of verifications has appeared to have been remedied.

Form Interrogatories.

1.0: GRANTED as to Sean Wirth and Jim Pacht.

1.1: GRANTED as to contact information.

15.1: DENIED as moot given order in 1.1.

17.1, RFA 30: DENIED.

17.1 RFA 31: DENIED.

17.1 RFA 41: DENIED.

17.1 RFA 42: DENIED.

17.1 RFA 43: DENIED.

17.1 RFA 44: GRANTED as to the identity and contact information of the attendee.

17.1 RFA 47: DENIED. The original RFA is not clear.

17.1 RFA 48: DENIED. As with others, the factual basis for the assertions is articulated.

17.1 RFA 50: GRANTED.

17.1 RFA 56: GRANTED.

17.1 RFA document authentication: DENIED. The Court takes these as sufficient admissions; if Defendant believes that these are not enforceable admissions, they should assert that now.

17.1 RFA 45 on: DENIED. See above.

b) Documents

DENIED.

GRANTED, for any outstanding documents.

GRANTED, for any outstanding documents. (Phrasing here and in other locations does not disclaim the existence of other responsive documents.)

GRANTED, for any outstanding documents.

GRANTED for any outstanding documents other than Plaintiff's own emails. It appears it would be unduly burdensome to provide those.

9. GRANTED. Given the response to 25, there seems to be a contradiction.

10. DENIED.

11. DENIED.

12. DENIED.

c) Special Interrogatory

1: GRANTED in part, as to any non-privileged conversations and including any non-privileged conversations regarding Plaintiff's ability to proceed. This use of definitions is perhaps not ideal, but also a permissible question in and of itself.

2. GRANTED as to the identity of the discussors.

3. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel.

4. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel.

7. DENIED. Dissatisfaction with the answer is insufficient to require further answer.

9. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel.

10. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel.

11. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel. The remaining answers are encompassed by the prior answers and existing answers are sufficient as far as they go.

12. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel. The remaining answers are encompassed by the prior answers and existing answers are sufficient as far as they go. Providing the information from the thousands of emails Plaintiff sent is overly burdensome and Plaintiff has equivalent access.

13. GRANTED as to any discussion of Plaintiff's ability to proceed as lead counsel.

16. DENIED.

21. DENIED.

22-24. GRANTED in part. Any unprivileged documents must be provided, given the answer to Special Interrogatory 25.

25. DENIED.

26. DENIED.

27. DENIED.

29. DENIED.

30. DENIED.

31. DENIED.

33. DENIED.

35. DENIED.